

****16.09.2024****

****Sanctions for Violating GDPR****

The National Supervisory Authority has completed investigations into two operators and has found violations of the provisions of Article 12 paragraph (3), Article 15, and Article 17 of the General Data Protection Regulation (GDPR).

As such, the operators have been sanctioned as follows:

1. The operator Vodafone România SA has been sanctioned with a fine of 14,930 lei (equivalent to 3,000 EURO).

The sanction was applied following a complaint alleging that the operator did not respond to the request through which the petitioner exercised their rights of access and deletion provided by the GDPR.

During the investigation, the National Supervisory Authority found that Vodafone România SA did not provide evidence that it had sent a response to the petitioner regarding their request to exercise their rights of access and deletion within 30 days, the response being communicated to the petitioner by the operator after actions were taken by our institution.

In this context, the operator Vodafone România SA was fined for violating the provisions of Article 12 paragraph (3), Article 15, and Article 17 of the GDPR.

Additionally, the operator Vodafone România SA was also subjected to the corrective measure of adopting an internal procedure regarding the resolution of requests submitted by data subjects under the GDPR (Articles 12-22), to comply in all cases with the applicable provisions regarding the analysis and prompt resolution of these requests, and to communicate responses to data subjects within the legal deadlines, as well as to regularly train the staff.

2. The operator SC Class IT Outsourcing SRL has been sanctioned with a fine of 4,976.7 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint alleging that the operator did not respond to the request to exercise the right to deletion.

During the investigation, the National Supervisory Authority found that the operator SC Class IT Outsourcing SRL did not provide evidence that it had sent a response to the petitioner regarding their request to exercise the right to deletion within 30 days, the response being sent after actions were taken by the supervisory authority.

Thus, the operator SC Class IT Outsourcing SRL was fined for violating the provisions of Article 12 paragraph (3) and Article 17 of the GDPR.

At the same time, the operator was also subjected to the corrective measure of adopting an internal procedure regarding the resolution of requests submitted by data subjects under the GDPR (Articles 12-22), to comply in all cases with the applicable provisions regarding the analysis and prompt resolution of these requests, and to communicate responses to data subjects within the legal deadlines, as well as to regularly train the staff.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****